GAZETTE NOTICE NO. 4267

THE PROCEEDS OF CRIME AND ANTI-MONEY LAUNDERING ACT

(*No.* 9 *of* 2009)

PRESERVATION ORDERS

IN EXERCISE of the powers conferred by section 83 (1) of the Proceeds of Crime and Anti-Money Laundering Act, 2009, the Agency Director gives notice to—

Asif Amirali Alibhai Jetha and Lyn Henderson that the High Court has issued preservation orders in Nairobi High Court Miscellaneous Application No. E12 of 2025 as specified in the Schedule hereto:

REPUBLIC OF KENYA

IN THE HIGH COURT OF KENYA AT NAIROBI

ANTI-CORRUPTION AND ECONOMIC CRIMES DIVISION

MISCELLANEOUS CIVIL APPLICATION NO E012 OF 2025

In the Matter of: An Application by the Assets Recovery Agency For Orders under Sections 81, 82 and 87 of The Proceeds of Crime and Anti-Money Laundering Act(Pocamla) as Read with Order 51 of The Civil Procedure Rules

In the Matter of: An Application for Preservation Orders of the following Assets:

(i) Apartment No. A1 In Block A Erected on Subdivision No.18915 of Section I Mainland North (C.R 64698)

(ii) Apartment No. A4 In Block A Erected on Subdivision No.18915 of Section 1 Mainland North (C.R 64699)

(iii) Apartment No. A6 In Block A Erected on Subdivision No.18915 of Section 1 Mainland North (C.R 64700)

BETWEEN

Assets Recovery Agency…….. Applicant

-Versus-

Asif Amirali Alibhai Jetha…….1st Respondent

Lyn Henderson…….2nd Respondent

IN CHAMBERS ON 28TH MARCH, 2025

BEFORE HON. LADY JUSTICE L.M. NJUGUNA

Order

Claims In The Application

1. THAT this application be certified urgent and the same be heard ex-parte on a priority basis in the first instance.

2. THAT this Honourable Court do issue Preservation Order prohibiting the 1st and 2nd Respondents and/or their employees, agents, servants or any other persons acting on their behalf from selling, transferring, mortgaging or dealing in any manner with the following assets;

(a) Apartment No. A1 in Block A erected on subdivision No.18915 of Section I Mainland North (C.R 64698) registered in the name of the 2nd respondent

(b) Apartment No. A4 in Block A erected on subdivision No.18915 of Section 1 Mainland North (C.R 64699) registered in the name of the 2nd respondent

(c) Apartment No. A6 In Block A erected on subdivision No.18915 of Section 1 Mainland North (C.R 64700) registered in the name of the 2nd respondent

3. THAT this Honourable Court do issue Preservation Order preserving any rental income, benefit, profit accruing from the assets mentioned in prayer number 2 above.

4. THAT this Honourable Court do issue an order directing that any rent, benefit or profit generated from the assets indicated in prayer 2 be deposited in the Applicant's Criminal Asset Recovery Fund Account No. 1240221339 held at Kenya Commercial Bank, pending the hearing and determination of intended forfeiture application.

5. THAT this Honourable Court do issue an order directing the Chief Land Registrar to register a caveat against the records of each of the properties specified in prayer 2 above.

6. THAT the Honourable Court makes any other ancillary orders that it may deem fit and just for proper and effective execution of its orders.

7. THAT costs be provided for.

Ex-Parte;

UPON consideration of the Originating Motion dated 27th March, 2025 brought under certificate of urgency by Counsel for the Applicant under Sections 81, 82 and 87 of the Proceeds of Crime and Anti-Money Laundering Act 2009 and Order 51 rule 1 of the Civil Procedure Rules, and upon reading the supporting affidavit of Chief Inspector Bernard Gitonga sworn on 27th March, 2025 and the annextures thereto;

IT IS HEREBY ORDERED

1. THAT a preservation order be and is hereby issued prohibiting the 1st and 2nd Respondents and/or their employees, agents, servants or any other persons acting on their behalf from selling, transferring, mortgaging or dealing in any manner with the following assets;

(a) Apartment No. A1 in Block A erected on subdivision No.18915 of Section I Mainland North (C.R 64698) registered in the name of the 2nd respondent

(b) Apartment No. A4 in Block A erected on subdivision No.18915 of Section 1 Mainland North (C.R 64699) registered in the name of the 2nd respondent

(c) Apartment No. A6 In Block A erected on subdivision No.18915 of Section 1 Mainland North (C.R 64700) registered in the name of the 2nd respondent

2. THAT a preservation order be and is hereby issued preserving any rental income, benefit, profit accruing from the assets mentioned in order 1 above.

3. THAT an order be and is hereby issued directing that any rent, benefit or profit generated from the assets indicated in order 1 above be deposited in the Applicant's Criminal Asset Recovery Fund Account No. 1240221339 held at Kenya Commercial Bank, pending the hearing and determination of intended forfeiture application.

4. THAT an order be and is hereby issued directing the Chief Land Registrar to register a caveat against the records of each of the properties specified in order 1 above.

5. THAT no orders as to costs.

GIVEN under my hand and the seal of this Honorable Court this 28th day of March, 2025.

ISSUED at NAIROBI this 28th day of March, 2025.

DEPUTY REGISTRAR,
High Court,
Anti-Corruption & Economic Crimes Division Nairobi

PENAL NOTICE

Take Notice that if you, the above-named Respondent or your Servants/Agents disobey this Order, you will be cited for Contempt of Court and shall be liable To Imprisonment for a period of not more than six months.

Dated the 1st April, 2025.

KENNEDY OGWENGO,
PI#01394 *for. Ag. Director Assets Recovery Agency.*